

consequences. *Id.* at ¶15. The Court does not find this credible.

The fact that the only specific reservation expressed by Ms. Leone, as reflected in the minutes, was the impact of possible discovery issues on readiness to proceed with such a court trial cuts against Ms. Leone's position. Ms. Leone had the wherewithal to carefully consider the impact of such a trial setting in light of the discovery posture of the case. She was plainly able to consider the impact of the setting on her litigation rights and its procedural posture. Yet, she failed to demand a jury trial or object to the setting of a court trial.

The Court has considered whether, in its discretion, to permit a jury trial on the Bifurcated Issue. See CJER Civ. Pro.—Trial, § 3.8. The Court has considered the totality of the circumstances and all evidence before the Court as to whether relief from waiver of a jury on the Bifurcated Issue would be just.

Among other things, the Court observes that the adjudication of the Bifurcated Issue involves a narrow issue whose adjudication would have minimal prejudicial impact on Ms. Leone's right to otherwise contest the substance of the claims against her before a jury. The resolution of the issue would put to rest an issue that will streamline the case and reduce the number of issues to be tried, whether before the court or a jury. Moreover, it will eliminate the possibility of a conflict in the determination on a threshold issue that would otherwise ultimately have to be tried both before the court and a jury separately.

The Court does not conclude that relief from waiver would be just and appropriate.

Disposition

The Court finds and rules as follows:

1. The Motion to Vacate Bench Trial is DENIED.
2. The Court shall issue the order after hearing.

4. 9:00 AM CASE NUMBER: C23-03252
CASE NAME: COURTNEY NIELSON VS. DIANA GEORGE
HEARING ON SUMMARY MOTION
FILED BY: NIELSON, COURTNEY
TENTATIVE RULING:

Motion **continued** by the Court to March 2, 2026 at 9:00 a.m.

5. 9:00 AM CASE NUMBER: C24-01160
CASE NAME: DENEA MARHX VS. INTERNATIONAL CHURCH OF THE FOURSQUARE GOSPEL
***HEARING ON MOTION IN RE: TERMINATING SANCTIONS**
FILED BY: MARHX, DENEA
TENTATIVE RULING:

Plaintiff Denea Marhx ("Plaintiff") filed a Motion for 1) Terminating Sanction, or 2) Issue Sanction, and 3) Monetary Sanction on September 10, 2025 (the "Motion for Sanctions"). The Motion for Sanctions was set for hearing on January 26, 2026. The motion was duly served. The motion is opposed.

Background

Plaintiff's Motion for Sanctions seeks the imposition of a terminating sanction against defendant International Church of the Foursquare Gospel ("International Church") because Plaintiff contends that International Church has defied the Court's prior orders. Alternatively, Plaintiff seeks "an issue sanction striking the 36th affirmative defense set forth in Defendant's Answer." Plaintiff also seeks monetary sanctions in the amount of \$7,080.00.

The Motion for Sanctions is supported by the Declaration of David A. Peck. See Declaration of David A. Peck filed September 10, 2025 (the "Supporting Declaration").

An Opposition brief was filed on January 13, 2026 (the "Opposition").

A Reply brief was filed on January 16, 2026 (the "Reply"). The Court has considered the issue raised as to the timeliness of the Opposition paper. In the Court's discretion, it has considered the Opposition.

Analysis

Plaintiff makes reference to prior orders issued by the Court compelling International Church to provide further responses to certain discovery propounded by Plaintiff. See Order dated August 4, 2025 (the "August 4th Order"). Among other things, International Church was ordered to provide certain further responses to the subject discovery (the "Further Discovery Responses"):

Defendant International Church of the Foursquare Gospel shall serve further verified or amended responses to (1.) Plaintiff's Special Interrogatories, Set One; (2.) Plaintiff's Form Interrogatories-General, Set One; and (3.) Plaintiff's Request for Production, Set One no later than August 26, 2025. Defendant shall also serve all responsive documents no later than August 26, 2025.

See August 4th Order, p. 2.

Plaintiff contends that International Church only provided a further informal production of documents but otherwise failed to provide the Further Discovery Responses ordered by the Court. See Supporting Declaration, ¶¶9-10.

Plaintiff also recounts two other sets of discovery requests to which International Church had failed to respond. *Id.* at ¶11 [referring to a November 14, 2025 hearing on separate motions to compel addition two sets of written discovery (Special Interrogatories, Set Two, and Request for Production of Documents, Set Two) (the "Additional Discovery")]. The Court notes that an order on this discovery was issued November 14, 2025.

The Opposition states that International Church "intends to comply with the Court's discovery orders at all times." See Opposition, p. 7. This statement rings hollow. The deadline was August 26, 2025, four months and 19 days before the date the Opposition was submitted. Yet, International Church failed for that extended period of time to come into compliance, notwithstanding the pendency of the present motion filed in September 2025.

No showing is made as to any due diligence in an effort to provide the Further Discovery Responses. No showing is made as to any specific reasons for the delay. No declaration is offered at all in support of the Opposition.

Indeed, International Church and its counsel demonstrate a degree of contemptuousness of the Court's prior order when they resort to arguments about why discovery should be limited. At present, the

validity of the discovery is not at issue. No reconsideration was sought as to the Court's August 4th Order. It is a question of compliance and International Church and its counsel have clearly failed to do so.

International Church's failure to comply with the Court's August 4th Order and to provide the ordered discovery responses even after the deadline to do so had passed constitutes failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure section 2023.010(d).

The Court has considered the appropriate remedy, including whether to impose an incremental sanction so as to give International Church an opportunity to comply before resorting to terminating or issue sanctions. The Court concludes that the just and appropriate remedy is the imposition of monetary sanctions with a further order and admonition to International Church regarding compliance with the Court's August 4th Order and for the further order set forth below.

The Court finds that the foregoing conduct by International Church constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions. In failing to timely respond to the discovery requests and to comply with the Court's order to do so, the Court finds that International Church did not act with substantial justification. Furthermore, the Court does not find any other circumstances that would make the imposition of monetary sanctions unjust.

Disposition

The Court further finds and orders as follows:

1. The Motion for Sanctions is GRANTED IN PART as follows:
 - a. International Church and its counsel are ordered to comply with the Court's August 4th Order on or before **Monday, February 23, 2026**.
 - b. Such responses shall be served on the propounding party via overnight mail to propounding party's attorney's office or other means providing tracking of delivery. International Church shall thereafter prepare and execute a proof of service of such responses, signed under penalty of perjury.
 - c. International Church shall pay monetary sanctions to Plaintiff in the amount of **\$6,430.00** (the "Monetary Sanctions"). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys' fees, incurred by Plaintiff as a result of the foregoing conduct by International Church. In fixing said amount, the Court has considered all evidence in the record before the Court, including the Supporting Declaration of the moving party. The Monetary Sanctions shall be paid by International Church **within thirty (30) calendar days** of notice of entry of this order.
2. The Motion for Sanctions is otherwise CONTINUED for hearing to **March 30, 2026**, 9:00 am in Department 34.
3. The Court, *sua sponte*, continues the International Church's Motion for Summary Judgment currently set for hearing on March 16, 2026 (the "MSJ") for approximately 120 days, to permit compliance with the Court's August 4th Order and further discovery proceedings to take place. All of the responding party's deadlines are continued in relation to the MSJ. International Church's MSJ is CONTINUED to **July 27, 2026**, 9:00 am in Department 34.
4. The Court, *sua sponte*, strikes the International Church's Motion to Bifurcate Discovery filed

January 12, 2026 and set for hearing on June 29, 2026 (the “Motion to Bifurcate Discovery”).
The hearing date on the Motion to Bifurcate Discovery is VACATED. The International Church will not be heard on such matters while it stands in a posture of non-compliance and contempt of the Court’s prior discovery order. See *MacPherson v. MacPherson* (1939) 13 Cal.2d 271, 277 (“A party to an action cannot, with right or reason, ask the aid and assistance of a court in hearing his demands while he stands in an attitude of contempt to legal orders and processes of the courts of this state.”).

5. The Court shall issue the order after hearing.

6. 9:00 AM CASE NUMBER: C24-01939
CASE NAME: NICKOLAI POPOV VS. ALEXANDER POPOV
***HEARING ON MOTION IN RE: SET ASIDE & VACATE JUDGMENT OF DISMISSAL ON THE GROUNDS OF UNDUE INFLUENCE & LACK OF CAPACITY**
FILED BY:
TENTATIVE RULING:

See line 7.

7. 9:00 AM CASE NUMBER: C24-01939
CASE NAME: NICKOLAI POPOV VS. ALEXANDER POPOV
***HEARING ON MOTION IN RE: STAY.**
FILED BY:
TENTATIVE RULING:

At the hearing on August 04, 2025, the Court continued this motion until after the probate hearing regarding the administrator of the Estate of Nikolai Popov on August 25, 2025, and ordered additional briefing. The Court thanks the Parties who submitted their additional briefs and will not be taking any more additional briefing from the Parties at this time.

On September 11, 2025, Counsel for Defendant Alexander Popov filed a status update for Probate Case No: P25-00516. The status update requested a continuance of a hearing date from the Probate Court for the Parties to coordinate mediation for a global settlement of all four related cases (C25-00229; C24-01939; P25-00516; and P25-00495) which was set to take place on October 15, 2025.

The Probate Court in a minute order dated September 25, 2025, continued the Motion to Set Aside the Appointment of Special Administrator to December 16, 2025.

The Probate Court granted a temporary order assigning Michael Popov as Special Administrator due to the original order being set to expire and continued the Motion to Set Aside the Appointment of Special Administrator to January 27, 2026.

In the name of judicial efficiency, the Court is going to continue this hearing to March 16, 2026, at 9:00 AM in this department, to ensure no conflicting rulings are issued.